



| POLICY                                                                                                                                                                                                                                                                                                                                                                            |           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| Mental Health Act Legal Orders and Notifications                                                                                                                                                                                                                                                                                                                                  |           |
| Scope (Staff):                                                                                                                                                                                                                                                                                                                                                                    | All staff |
| Scope (Area):                                                                                                                                                                                                                                                                                                                                                                     | CAMHS     |
| <b>Child Safe Organisation Statement of Commitment</b><br>The Child and Adolescent Health Service (CAHS) commits to being a child safe organisation by meeting the National Child Safe Principles and National Child Safe Standards. This is a commitment to a strong culture supported by robust policies and procedures to ensure the safety and wellbeing of children at CAHS. |           |

This document should be read in conjunction with this [DISCLAIMER](#)

**PLEASE DO NOT PRINT (49 pages long) – USE LINKS on p.3**

## Aim

To guide staff regarding the process of completion of legal orders under the Mental Health Act 2014 (MHA 2014) and the [Policy for Mandatory Reporting of Notifiable Incidents to the Chief Psychiatrist: Policy for Public Mental Health Services 2018](#).

To direct staff in regards to what notifications are to be provided to:

- Carers, close family members and/or other support person,
- Chief Psychiatrist (OCP),
- Chief Mental Health Advocate (MHAS),
- Mental Health Tribunal (MHT), and
- Mentally Impaired Accused Review Board (MIARB).

## Background

The MHA 2014 prescribes when these individuals and groups have to be notified of certain circumstances.

### Scope (MHA 2014, s. 515)

Voluntary patients being provided with treatment or care by CAMHS, involuntary patients, mentally impaired accused required to be detained at the authorised ward 5A, PCH, patients under an order of the MHA to enable an examination by a psychiatrist at an authorised hospital are within scope of this policy. Additionally, these children are also included:

- Children on leave from Ward 5A

- Children admitted to a general health ward or emergency department, whose treatment is informed by a mental health clinician employed by CAMHS (for example children undergoing concurrent treatment for eating disorders)

Inpatients discharged as a voluntary patient for follow up to a community mental health service, but who have not yet been seen, remain the responsibility of ward 5A until handover to the receiving service/practitioner, or until the child and family decides on an alternative process.

### Risk

Children and families may not have their rights upheld if notifications are not provided.

### Definitions

**Child:** an infant, child, adolescent or young person under the age of 18 years.

**Family:** any parent, legal guardian or identified carer of the child. For a child of Aboriginal or Torres Strait Islander descent, this includes a person within their kinship group who is recognised as their carer under customary laws and traditions (s. 271).

**Carer:** a carer, close family member or other personal support person.

**Person responsible:** Schedule 2 of the MHA 2014 states the person responsible for notification of a particular event. Tables in the appendix of this policy identify the person responsible for each notification event.

### Policy

A carer, close family member or other personal support person of a child is entitled to be notified, as soon as practicable, that a notifiable event has occurred in respect to the child (s. 139, MHA 2014), unless it is in the best interest of the child not to notify said persons (s. 142, MHA 2014).

CAMHS must provide the Chief Psychiatrist, Chief Mental Health Advocate, Mental Health Tribunal, with information required as detailed in Appendix 1 under the MHA 2014. For a child who is mentally impaired accused, the Mentally Impaired Accused Review Board (MIARB) must also be notified as per Appendix 1.

The person responsible must make the required notifications.

### Procedure

For detailed instructions about what information should be notified to what individual/organisation, and in what timeframe, for a particular content area, click on the options below:

[Attempted suicide](#)

[Assault and/or aggression](#)

[Communication and information sharing](#)

[Community Treatment Order](#)

[Detention order](#)

[Death, unlawful sexual contact, unreasonable use of force](#)

[ECT](#)

[Emergency Psychiatric Treatment](#)

[Further opinion](#)

[Granting of Leave](#)

[Homicide](#)

[Inpatient treatment Order](#)

[Media attention](#)

[Medication error](#)

[Missing person, absent without leave](#)

[Notifications by third parties](#)

[Off-label treatment](#)

[Patient's wishes and rights](#)

[Performance of Psychosurgery](#)

[Referrals](#)

[Release of a child](#)

[Request for Mental Health Advocate contact](#)

[Search and seizure](#)

[Seclusion and restraint](#)

[Transfer Order](#)

[Transport Order](#)

[Urgent attention by Chief Psychiatrist](#)

## **1. Notifications to Carers, close family members and/or other support person**

- The person responsible must, as soon as is practicable notify the carer, close family member or other personal support person of any notifiable event (s. 140, MHA 2014), unless it is in the best interests of the patient not to do so, as advised by the Medical Practitioner.
- All reasonable efforts must be made to notify the carer, close family member or other personal support person (s. 141, MHA 2014).
- All notifications, or attempts to notify said persons, must be documented in the child's medical record and entered into PSOLIS.

Relevant information brochures from the Mental Health Commission must also be given to the child and family, including:

- Being referred to a Psychiatrist for examination
- Community Treatment Orders
- Information for personal support persons
- Information for voluntary persons
- Inpatient treatment orders
- Nominated persons
- Receiving treatment for a mental illness
- Transitioning to the Mental Health Act

Available from: [Mental Health Commission Resources web page](#)

### ***Choosing not to notify a carer, close family member or other personal support person:***

The Medical Practitioner may choose not to notify a carer, close family member or other personal support person about a notifiable event (s. 142, MHA 2014, and 1.24.7-10 CPG) if they believe that notifying said persons is not in the best interests of the patient (refer Division 3 "Best interests of a person" of the MHA 2014).

This decision must, as soon as is practicable, be recorded in the medical record and the Chief Mental Health Advocate informed.

If a carer, close family member or other personal support person requests the Medical Practitioner or Consultant Psychiatrist to inform them, the Medical Practitioner or

Consultant Psychiatrist must advise said persons of the reason for choosing not to inform them of the notifiable event. This advice must be recorded in the medical record and the patient informed (s. 149, MHA 2014).

The carer, close family member or other personal support person has a right to request this advice in writing. If this occurs, the Medical Practitioner or Consultant Psychiatrist must provide a copy to the patient and retain a copy in the medical record. Revocation of this decision must also be documented in the medical record.

## **2. Process for completion of MHA legal order forms and notifications to OCP, MHAS, MHT, and where relevant the MIARB**

The following legal orders must be entered directly into PSOLIS by the responsible person:

- 1A Referral for examination by Psychiatrist
- Attachment to Form 1A – Information provided by another person in confidence
- 1B Variation of referral
- 2 Order to detail voluntary inpatient in authorised hospital for assessment
- 3A Detention order
- 3B Continuation of detention
- 3C Continuation of detention to enable a further examination by psychiatrist
- 3D Order authorising reception and detention in an authorised hospital for further examination
- 3E Order that person cannot continue to be detained
- 4A Authorisation for transport order
- 4B Extension of transport order
- 4C Transfer order
- 5A Community treatment order
- 5B Continuation of community treatment order
- 5C Variation of terms of Community Treatment order
- 5D Request by psychiatrist for practitioner to examine
- 5E Notice and Record of breach of CTO
- 5F Order to attend following breach of CTO
- 6A Inpatient treatment order – authorised hospital
- 6B Inpatient treatment order in a general hospital
- 6B attachment inpatient treatment order in a general hospital – report for the Chief Psychiatrist
- 6C Continuation of an inpatient treatment order
- 6D Confirmation of an inpatient treatment order

- 7A Grant of leave to an involuntary inpatient
- 7B Extension and/or variation of leave
- 7C Cancellation of grant of leave
- 7D Apprehension and return order
- 9A Record of emergency psychiatric treatment
- 9B Report to the Chief Psychiatrist about provision of urgent non-psychiatric treatment
- 12B Refusal of request to access records
- 12C Restriction on freedom of communication
- 12C Attachment restriction on freedom of communication

Only under exceptional circumstances should these orders be handwritten and then transcribed at a later time into PSOLIS. In this case the responsible person signing the order can delegate the transcribing of the order into PSOLIS to an authorised PSOLIS user for Quality Assurance. All transcribed orders must be entered into PSOLIS as soon as possible, but no later than 24 hours from the time the order was made.

These orders must always be transcribed within 2 hours:

- 5A - Community Treatment Order,
- 6A – Inpatient Treatment Order, Authorised Hospital, and
- 6B – Inpatient Treatment Order – General Hospital.

Direct entry of Notifications into PSOLIS enables automatic notification of the MHAS, MHT, and OCP where relevant. Where a child is mentally impaired accused, notification must be made via email to the Mentally Impaired Accused Review Board (MIARB) at [prisonersreviewboard@justice.wa.gov.au](mailto:prisonersreviewboard@justice.wa.gov.au).

Also see separate sections for each agency.

These forms cannot currently be entered directly into PSOLIS:

- 4D, 4E, 8A, 8B, 10A-I (restraint), 11A-I (seclusion), 12A, and 13.

Relevant notifications of these orders must continue to be made via fax or email when using the electronic form.

- Fax numbers are to be added to fax machines and named, ie phone numbers are not to be entered as each form is faxed.
- Both sides of each page (front and notes) of the form must be transmitted.
- A cover page/sheet to be included with the fax, with a subject line as per table below.
- **MHAS: If fax is busy and it is not possible to transmit the fax within the 2 hours timeframe, call 08 6234 6300.**
- Each order or notification must be sent separately with a cover fax sheet.

Subject line should read:

| Form                                         | Subject line      |
|----------------------------------------------|-------------------|
| 10A, B, C, D, E, F, G, H, I,                 | Restraint Orders  |
| 11A, B, C, D, E, F, G                        | Seclusion Orders  |
| 12A – Restriction of communication           | Restriction Order |
| All other matters as per table in Appendix 1 | Notification      |

In the body of the fax, include the name of the child as follows:

CITIZEN (John) – PCH Ward 5A – Form XX – 30 November 2015

|              | Fax number                                                          |
|--------------|---------------------------------------------------------------------|
| <b>MHAS</b>  | 08 9226 3977                                                        |
| <b>MHT</b>   | 08 9226 2668                                                        |
| <b>OCP</b>   | 08 9222 4244                                                        |
| <b>MIARB</b> | Not yet available<br>Courier/postal: GPO Box<br>C127, PERTH WA 6839 |

Process when a form is available in PSOLIS

1. Responsible person (most often the Psychiatrist) as identified in Appendix 1 decides to alter the status of the child/signs a form that needs to be notified. The responsible person informs child and family where required.
2. The responsible person completes and signs Form 6A Inpatient treatment order (ITO) in authorised hospital, Form 6B, ITO in general hospital, or Form 5A Community treatment order and other forms as noted in Appendix 1 directly into PSOLIS and then prints the form. Completion of the form in PSOLIS ensures the automatic notification of the MHAS, MHT, and OCP where relevant.
3. On completion of the form, the responsible person as a matter of priority informs the Shift coordinator/Allocated Nurse and hands the printed Form to the Ward Clerk.
4. Ward clerk files the printed form in the child's medical record.
  - a. If the ward clerk is not available the Shift coordinator files the printed form in the child's medical record.

Also see attached flowcharts in Appendix 4.

### 3. Notifications to Chief Psychiatrist

See [Table 1. Overview of how to report to the Chief Psychiatrist](#)

CAMHS is responsible for notifying the Chief Psychiatrist of any notification listed in Appendix 1: Notifications under the MHA 2014, as soon as is practicable within 24 hours of its occurrence.

This includes notification of the use of off-label treatment provided to a child who is an involuntary patient.

- The '[MHA2014 s.304 Off Label treatment provided to a child how is an involuntary patient – notification form](#)' must be completed and provided to the Chief Psychiatrist as soon as practicable.
- Documentation in the child's medical record of the decision to provide the off-label treatment, including a description of the off-label treatment and the reasons for the decision.

#### ***Other notifiable events/incidents***

The Executive Director or delegate is responsible for notifying the OCP of any notifiable incident (refer s. 526 of the *MHA 2014*), being:

- The death of a patient, regardless of where this may occur, including all deaths within 28 days of a patient's discharge or deactivation (community or inpatient), even if the health service becomes aware of the death after the 28 day period.
- Assault or aggression (child/patient to any other person) at PCH, on community mental health service premises or in the community during an assessment
- Sexual contact and/or allegation of sexual assault (child to any other person(s)) that occurred within an inpatient setting (including emergency departments and hospital grounds), community mental health service premises (this includes incidents occurring during staff assessment of the patient at their home or other premises) or at a private psychiatric hostel.
  - Disclosure of sexual assault/abuse that has occurred outside of a mental health service setting is not reportable to the Chief Psychiatrist.
    - See the [CAHS Child Safety and Protection policy](#) and the CAMHS Sexual Safety guideline for guidance around appropriate follow-up for the child in this instance.
- Attempted suicide
- Absent without leave (under the Mental Health Act)
- Missing person (voluntary and high risk of harm)
- medication error
- Unlawful sexual contact reasonable suspected with the patient by a staff member of a mental health service or another person within a hospital setting that is not a mental health patient
- Patient harm by suspected unreasonable use of force by a staff member of a mental health service on a patient.



- Any allegation of homicide committed by a current mental health patient or a mental health patient who was discharged within 28 days prior to the homicide, even if the health service becomes aware of the homicide after the 28 days.
- Any notifiable incident described in this policy that may receive media attention

Where a notifiable incident described in this policy requires urgent attention by the Chief Psychiatrist, the CAMHS consultant psychiatrist, executive director or their delegate should report directly to the Chief Psychiatrist in addition to reporting through Datix CIMS or via the Chief Psychiatrist's Notifiable Incident form.

The report must include the following details about the incident (s. 526(3) and [Policy for Mandatory Reporting of Notifiable Incidents to the Chief Psychiatrist: Policy for Public Mental Health Services \(2018\)](#)):

1. The location where the notifiable incident occurred.
2. Patient demographic details, including patient name and any alias.
3. Mental health status (voluntary, involuntary, referred under the MHA 2014).
4. If the patient is MIA or on a Community Treatment Order (CTO) - this information should be provided using the 'Current and relevant diagnosis/problems' section.
5. Details of the patient's mental state prior to the incident - this information should be provided using the 'Current and relevant diagnosis/problems' section.
6. Date and time when the notifiable incident occurred.
7. Whether the patient's family, carer, guardian, nominated person or support person has been notified. If they haven't been notified the reasons why should be documented.
8. Details of the notifiable incident and the circumstances in which it occurred.
9. For patients AWOL or Missing Persons, the Chief Psychiatrist should be advised of the date and time patient returned, the nature of the assessment performed on the patient's return, and patient outcome, if known at time of report or via email after their return.
10. Provide probable cause of death on current evidence e.g. suicide / accident / physical cause / undetermined.
11. Provide any other information about the incident or death that the notifier or person in charge considers relevant.
12. Medication, if relevant to the incident including any likely problems/factors.
13. For incidents of sexual contact and/or sexual assault allegations include information on the following points in the incident description, where applicable:
  - Does the allegation pertain to sexual assault?
  - Was the sexual contact between non-consenting individuals, between one consenting and one non-consenting individual, or between two consenting individuals?
  - What was the mental health status and capacity to consent of each individual?
  - Could this incident be a delusion caused by the patient's mental illness?



- Was the allegation substantiated?
- What immediate action was taken to protect both parties and other patients / staff e.g. observation levels, ward placement, psychiatric care / physical / risk assessment?
- If police and/or the Sexual Assault Referral Centre (SARC) are involved, provide details. And if not, state why not.
- The residual impact the incident had on the physical, mental and social wellbeing of each party involved, using the appropriate tools and assessments.

14. Date of most recent risk assessment prior to the incident, identified risks, and measures taken to address these risks

15. Date of the most recent Management Plan or Treatment, Support and Discharge Plan prior to the incident.

16. For community mental health patients, the date of most recent mental health inpatient admission, community mental health contact, and/or mental health emergency department presentation prior to the incident.

17. Any relevant treatment and/or investigations the patient received.

18. Patient outcome.

If this information is not available at the time of completing either the Datix CIMS notification or the Chief Psychiatrist form, email to [monitoring@ocp.wa.gov.au](mailto:monitoring@ocp.wa.gov.au) or where relevant update the Datix record. For notifications made via Datix CIMS where there are no specific fields in Datix CIMS for the required information, use the 'Describe the actual or potential clinical incident' section.

The OCP Notifiable Incidents Form is available on the [Chief Psychiatrist Reporting Notifiable Incident - Public Mental health Services web page](#) (scroll down). The password is unchanged. Once completed it should be emailed to [monitoring@ocp.wa.gov.au](mailto:monitoring@ocp.wa.gov.au).

Refer to Appendix 1 for specific timeframes and mechanisms for reporting notifiable incidents to the OCP.

#### **4. Notifications to Chief Mental Health Advocate**

The responsible person must notify the Chief Mental Health Advocate of any notifications as listed in Appendix 1: Notifications under the Mental Health Act, as soon as is practicable within 24 hours of its occurrence.

Completion of Form 6A, 6B and 5A in PSOLIS ensures immediate notification to the MHAS, enabling visits within 24 hours.

#### **5. Notifications to Mental Health Tribunal**

CAMHS is responsible for notifying the MHT of any required notifications as soon as is practicable. See list in Appendix 1: Notifications under the MHA 2014 for those relevant to the Tribunal. Consent from the parent/guardian or child is **not required** for notifications to notify the MHT

See [Mental Health Tribunal Review webpage](#) for information regarding preparation of meetings.

## 6. Notifications to Mentally Impaired Accused Review Board

The responsible person must notify the Mentally Impaired Accused Review Board if the child is mentally impaired accused of any notification listed in appendix 1: Notifications under the MHA 2014, as soon as is practicable within 24 hours of its occurrence. Email a copy of the form to the Mentally Impaired Accused Review Board (MIARB) at [prisonersreviewboard@justice.wa.gov.au](mailto:prisonersreviewboard@justice.wa.gov.au).

### Related CAHS internal policies, procedures and guidelines

[PCH Absconding/Missing Patients](#)

### References

Carers: Part 2, Division 3, Part 9 & Part 23, Subdivision 4 of the *Mental Health Act 2014*.

Chief Mental Health Advocate: Sections 145, 142, 179, 262, 269, 292, Division 2 & Part 9 of the *MHA 2014*.

Chief Psychiatrist: Sections 65, 135, 179, 182, 183, 199, 201, 204, 209, 224, 240, 242, 254, 303, 304, 526 and Part 9 of the *MHA 2014*.

[WA Health Clinical Incident Management policy 2019](#), WA Health.

[Clinicians' Practice Guide to the Mental Health Act 2014 ed 3](#). Office of the Chief Psychiatrist, Government of Western Australia (WA). Section 1.24

Mental Health Tribunal: Sections 139, 145, Division 21 & Part 9 of the *MHA 2014*.

Mentally Impaired Accused Review Board: Sections 145, 204, 209, 224, 242 and Part 9 of the *MHA 2014*.

OCP Notifiable Incident form: [Chief Psychiatrist website](#) Reporting Notifiable Incidents page

[Policy for Mandatory Reporting of Notifiable Incidents to the Chief Psychiatrist: Policy for Public Mental Health Services 2018](#). Office of the Chief Psychiatrist, Government of WA.

[Mental Health Act 2014](#)

[WA Health Further Opinions under the Mental Health Act 2014 2015](#)

### Useful resources (including related forms)

[Table 1. Overview of how to report to the Chief Psychiatrist](#) from the [Policy for Mandatory Reporting of Notifiable Incidents to the Chief Psychiatrist: Policy for Public Mental Health](#)

|                                                                              |
|------------------------------------------------------------------------------|
| <a href="#">Services 2018</a>                                                |
| <a href="#">Mental Health Commission - MHA 2014 Resources</a>                |
| MHA forms are available here <a href="#">CAMHS SSCD and MHA forms page</a> : |
| <a href="#">Mental Health Tribunal Review webpage</a>                        |

This document can be made available in alternative formats on request for a person with a disability.

|                       |                                                                                                                                                                 |                   |              |
|-----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|
| Document Owner:       | CAMHS Medical Co-Director                                                                                                                                       |                   |              |
| Reviewer / Team:      | CAMHS Authorisation Clinical Policy Group                                                                                                                       |                   |              |
| Date First Issued:    | 25.11.2015                                                                                                                                                      | Last Reviewed:    | January 2019 |
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| Approved by:          | CAMHS Authorisation Clinical Policy Group                                                                                                                       | Date:             | 16.11.15     |
| Endorsed by:          | Medical Co-Director                                                                                                                                             | Date:             | 25.06.18     |
| Standards Applicable: | NSQHS Standards v2:  1.7<br>NSMHS: 1.2, 8.4<br>Child Safe Standards: 2, 3, 4 |                   |              |

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\*Note: CAMHS Leadership Committee approved a third 12-month extension of the review date to 25.06.2024.

## Appendix 1 Notifications under the MHA 2014

| Description of event                                                                                                   | Responsibility             | Form                    | Action Required                                                | Section of MHA 2014 | Who to notify | Record of completion |
|------------------------------------------------------------------------------------------------------------------------|----------------------------|-------------------------|----------------------------------------------------------------|---------------------|---------------|----------------------|
| <b>Referrals</b><br><a href="#">Navigate back to links</a>                                                             |                            |                         |                                                                |                     |               |                      |
| Referral for examination by Psychiatrist / Revocation of Referral                                                      | Medical Practitioner, AMHP | <b>1A</b>               | Valid for 72 hours<br><b>Notifiable Event – for revocation</b> | 26, 36, 41, 42, 43  | Carer         |                      |
| Attachment to Form 1A - Information provided by another person in confidence                                           | Referring Practitioner     | <b>1A</b><br>Attachment |                                                                | 26, 36, 41, 42, 43  | Carer         |                      |
| Variation of referral: Changing place where examination will be conducted / Extending referral made outside metro area | Medical Practitioner, AMHP | <b>1B</b>               | Valid for 72 hours from initial referral                       | 45, 46              | Carer         |                      |

| Description of event                                                                                          | Responsibility                           | Form      | Action Required                                                                                                                   | Section of MHA 2014 | Who to notify | Record of completion              |
|---------------------------------------------------------------------------------------------------------------|------------------------------------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------|---------------------|---------------|-----------------------------------|
| <b>Detention order</b><br><a href="#">Navigate back to links</a>                                              |                                          |           |                                                                                                                                   |                     |               |                                   |
| Order to detain voluntary inpatient in authorised hospital for assessment /Revocation of order for assessment | Person in charge of ward, MP, AMHP       | <b>2</b>  | Valid for 6 hours from the time order made                                                                                        | 34, 35              |               |                                   |
| Detention order                                                                                               | Medical practitioner, AMHP               | <b>3A</b> | Detention order in respect of a referred person<br>Valid for 24 hours from the time order made                                    | 28(8)               | Carer         | Admission checklist               |
| Continuation of detention                                                                                     | Psychiatrist, Medical practitioner, AMHP | <b>3B</b> | Valid for 72 hours from time order made (3A)                                                                                      | 28, 59, 62          | Carer         | Admission checklist               |
| Continuation of detention to enable a further examination by psychiatrist                                     | Psychiatrist                             | <b>3C</b> | <b>Notifiable Event</b><br>Valid up to 72 hours                                                                                   | 55 (1), (6)<br>56   | Carer         | Admission and Discharge checklist |
| Order authorising reception and detention in an authorised hospital for further examination                   | Psychiatrist                             | <b>3D</b> | <b>Notifiable Event</b><br>Can only be made following examination by a psychiatrist in a place OTHER than an authorised hospital) | 61 (1), (5)         | Carer         | Admission checklist               |
| Order that person cannot continue to be detained                                                              | Psychiatrist                             | <b>3E</b> | <b>Notifiable Event</b>                                                                                                           | 72                  | Carer         | Discharge checklist               |

| Description of event                                             | Responsibility                                | Form      | Action Required                                                                                                                            | Section of MHA 2014                        | Who to notify                       | Record of completion |
|------------------------------------------------------------------|-----------------------------------------------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------|-------------------------------------|----------------------|
| <b>Transport Order</b><br><a href="#">Navigate back to links</a> |                                               |           |                                                                                                                                            |                                            |                                     |                      |
| Transport Order / Revocation of Transport Order                  | Psychiatrist, Medical practitioner, AMHP      | <b>4A</b> | <b>Notifiable Event</b><br>See back of form for criteria<br>Making a transport order to take a referred person to the place of examination | 29, 63, 67, 92, 112, 129(5), 133, 148, 154 | Carer<br>Transport / Police Officer | Admission checklist  |
| Extension of Transport Order                                     | Psychiatrist, Medical practitioner, AMHP, MHP | <b>4B</b> | Valid up to 72 hours                                                                                                                       | 152                                        | Carer<br>Transport / Police Officer |                      |

| Description of event                                                                          | Responsibility                | Form                                                                                     | Action Required                                                                                                                                                                                                                                                                                              | Section of MHA 2014                        | Who to notify                       | Record of completion |
|-----------------------------------------------------------------------------------------------|-------------------------------|------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------|-------------------------------------|----------------------|
| <b>Inpatient treatment order</b><br><a href="#">Navigate back to links</a>                    |                               |                                                                                          |                                                                                                                                                                                                                                                                                                              |                                            |                                     |                      |
| Inpatient treatment order in authorised hospital / Revocation of ITO                          | Psychiatrist                  | <b>6A</b>                                                                                | <b>Notifiable Event</b><br>Valid for 21 days<br><b>Timeframe to notify order: within 2 hours</b><br><b>Timeframe for revoking: within 48 hours</b>                                                                                                                                                           | 55, 56, 72, 89, 90, 120(7), 123(8), 131(8) | Carer, MHT, MHAS, MIARB             | Admission checklist  |
| Inpatient treatment order in General Hospital / Revocation of ITO                             | Psychiatrist                  | <b>6B</b>                                                                                | <b>Notifiable Event</b><br>Valid for 21 days<br><b>Timeframe to notify order: within 2 hours</b><br><b>Timeframe for revoking: within 48 hours</b>                                                                                                                                                           | 61, 89, 90, 120(7), 123(8), 131(8)         | Carer, MHT, MHAS, MIARB             |                      |
| Inpatient Treatment order in General Hospital: Report to CP                                   | Psychiatrist                  | <b>6B attachment</b>                                                                     | Report patient's mental and physical condition, any treatment, any medical/surgical treatment<br><b>Timeframe: Completed at end of every 7 day period</b>                                                                                                                                                    | 65                                         | CP                                  |                      |
| Provision of name and contact details of carer, close family member or other personal support | Psychiatrist                  | <b>CAMHS Notification of Contact Details Form</b> (see Appendix at end of this document) | The Treating Psychiatrist must ensure that, as soon as practicable, provide the name and contact details of the carer who has been notified.<br>If no carer, close family member or other personal support person has been notified, the MHAS, MHT and MIARB must be advised of that and the reasons for it. | 145, 139                                   | MH Advocate<br>MH Tribunal<br>MIARB | Admission checklist  |
| Notice in writing of the expiry of an ITO                                                     | Psychiatrist<br>The person in | Use <b>6A</b> or <b>6B</b>                                                               | Stamp original form 'Expired'<br><b>Timeframe: within 48 hours</b>                                                                                                                                                                                                                                           | 93(4)                                      | Carer<br>MH Tribunal                | Admission checklist  |



## Mental Health Act Legal Orders and Notifications

|                     |                                                                      |           |                                                                                                                                                                                                                                                                             |         |              |  |
|---------------------|----------------------------------------------------------------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|--------------|--|
|                     | charge of the hospital at which the involuntary patient was detained |           |                                                                                                                                                                                                                                                                             |         | MH Advocate  |  |
| Continuation of ITO | Psychiatrist                                                         | <b>6C</b> | Timeframe: Up to 3 months from day order would have expired (Form 6A)<br>Obtain consent to share the information on this form and record consent on the CAMHS 'Consent for exchange of information form' by adding 'Mental Health Tribunal next to 'Other, please specify'. | 89      | Carer<br>MHT |  |
| Confirmation of ITO | Psychiatrist                                                         | <b>6D</b> | Obtain consent to share the information on this form and record consent on the CAMHS 'Consent for exchange of information form' by adding 'Mental Health Tribunal next to 'Other, please specify'.                                                                          | 68, 124 | Carer<br>MHT |  |

| Description of event                                                       | Responsibility                                                          | Form                 | Action Required                                                                                                                                                                                                                                                                                                                 | Section of MHA 2014                                     | Who to notify                         | Record of completion |
|----------------------------------------------------------------------------|-------------------------------------------------------------------------|----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------|---------------------------------------|----------------------|
| <b>Community treatment order</b><br><a href="#">Navigate back to links</a> |                                                                         |                      |                                                                                                                                                                                                                                                                                                                                 |                                                         |                                       |                      |
| Community treatment order (CTO) / Revocation of CTO                        | Psychiatrist (Confirmation by Psychiatrist, Medical Practitioner, AMHP) | <b>5A</b>            | <b>Notifiable Event</b><br>Confirmation required if CTO made without a referral and must be confirmed within 72 hours<br>Both initial CTO and confirmation where required to be notified.<br>Valid for up to 3 months from day order made<br><b>Timeframe for revoking: within 48 hours</b><br><b>Timeframe: within 2 hours</b> | 55, 56, 61, 72, 75, 76, 89, 90, 120(7), 123(8), 131(8). | Carer<br>MH Tribunal<br>MHAS<br>MIARB | Admission checklist  |
| Terms of the community treatment order                                     | Psychiatrist                                                            | <b>5A attachment</b> | Valid for up to 3 months from day order made<br>If completed after 5A has been sent will need to be notified separately.                                                                                                                                                                                                        | 115                                                     | Carer<br>MH Tribunal<br>MHAS<br>MIARB |                      |
| Continuation of Community Treatment Order (CTO)                            | Psychiatrist                                                            | <b>5B</b>            | Valid for up to 3 months from day order would have expired (Form 5A)<br>Obtain consent to share the information on this form and record consent on the CAMHS 'Consent for exchange of information form' by adding 'Mental Health Tribunal next to 'Other, please specify'.                                                      | 121                                                     | Carer<br>MHT                          |                      |
| Variation of terms of CTO                                                  | Psychiatrist                                                            | <b>5C</b>            | Obtain consent to share the information on this form and record consent on the CAMHS 'Consent for exchange of information form' by adding 'Mental Health Tribunal next to 'Other, please                                                                                                                                        | 122, 135, 137                                           | Carer<br>MHT                          |                      |

## Mental Health Act Legal Orders and Notifications

|                                                                                                               |              |               |                                                                                                               |          |                              |  |
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|                                                                                                               |              |               | specify'.                                                                                                     |          |                              |  |
| Notice in writing of expiry of a CTO                                                                          |              | Relates to 5A | Stamp original form 'Expired'.<br>Additional request of the MHT and MHAS<br><b>Timeframe: within 48 hours</b> | 145      | MH Tribunal MHAS             |  |
| Request made by a supervising psychiatrist for a practitioner to conduct the monthly examination of a patient | Psychiatrist | <b>5D</b>     |                                                                                                               | 118, 119 | Medical Practitioner or AHMP |  |
| Notice and record of breach of CTO                                                                            | Psychiatrist | <b>5E</b>     |                                                                                                               | 127      | Carer                        |  |
| Order to attend                                                                                               | Psychiatrist | <b>5F</b>     |                                                                                                               | 128      | Carer                        |  |

| Description of event                                            | Responsibility                                                  | Form      | Action Required                                                                                                                                                                                                                                                                                                                                                                                 | Section of MHA 2014 | Who to notify | Record of completion |
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| <b>Transfer Order</b><br><a href="#">Navigate back to links</a> |                                                                 |           |                                                                                                                                                                                                                                                                                                                                                                                                 |                     |               |                      |
| Transfer order                                                  | Psychiatrist who makes the order                                | <b>4C</b> | <b>Notifiable Event</b><br>Transferring an involuntary inpatient from a general hospital to an authorising hospital<br>Transferring an involuntary inpatient between authorised hospitals<br>Obtain consent to share the information on this form and record consent on the CAMHS 'Consent for exchange of information form' by adding 'Mental Health Tribunal next to 'Other, please specify'. | 66(5)<br>91(5)      | Carer<br>MHT  | Admission checklist  |
| Interstate transfer order (from WA)                             | Person in charge of the hospital, with written approval from CP | <b>4D</b> | <b>Notifiable Event</b><br>Making an order authorising the transfer of an involuntary inpatient from a WA hospital to an interstate mental health service<br>Need CP approval letter to receiving MH service<br>Obtain consent to share the information on this form and record consent on the CAMHS 'Consent for exchange of information form' by adding 'Mental                               | 555(1)<br>555(4)    | Carer<br>MHT  | Admission checklist  |

## Mental Health Act Legal Orders and Notifications

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|                                            |                                                                |           | Health Tribunal next to 'Other, please specify'.                                                                                                                                                                                                                                                                                                                                                         |                  |                                                 |                     |
| Interstate transfer approval order (to WA) | Person in charge of the hospital, with written consent from CP | <b>4E</b> | <b>Notifiable Event</b><br>Approving the transfer of an involuntary inpatient from an interstate mental health service to a WA hospital<br><br>Need CP Approval letter to receiving MH service<br><br>Obtain consent to share the information on this form and record consent on the CAMHS 'Consent for exchange of information form' by adding 'Mental Health Tribunal next to 'Other, please specify'. | 557(1)<br>557(6) | Carer (form and CP written approval)<br><br>MHT | Admission checklist |

| Description of event                                   | Responsibility                                  | Form | Action Required                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Section of MHA 2014                                                                                                                                                                                | Who to notify | Record of completion |
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| <b>Release of a child</b>                              |                                                 |      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                    |               |                      |
| <a href="#">Navigate back to links</a>                 |                                                 |      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                    |               |                      |
| The release of a child after non confirmation of order | The person in charge of the authorised hospital |      | <p>Releasing an involuntary inpatient from detention in an authorised hospital because:</p> <ul style="list-style-type: none"> <li>the patient is on a ‘Form 6B’ – Inpatient treatment order in a general hospital, and</li> <li>the examination of this order took place via AV, and</li> <li>since that examination, the patient has not had a face-to-face examination, and</li> <li>the patient has since been transferred to the authorising hospital, and</li> <li>a ‘Form 6D’ – Confirmation of inpatient treatment order, was not made by a psychiatrist at the authorising hospital within 24 hours of the patient being admitted to the authorising hospital.</li> </ul> <p>Or:</p> <ul style="list-style-type: none"> <li>following an examination, the inpatient treatment order was revoked, or a community treatment order was made.</li> <li>at any time, the inpatient treatment order was revoked, or a community</li> </ul> | <p>68(6)</p> <p>68(7)</p><br><br><br><br><br><br><br><br><br><br><br><p>89(6)</p><br><br><br><br><br><br><br><br><br><br><br><p>90(5)</p><br><br><br><br><br><br><br><br><br><br><br><p>124(7)</p> | Carer         | Discharge checklist  |

|                                             |                                                                    |           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |        |       |  |
|---------------------------------------------|--------------------------------------------------------------------|-----------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|-------|--|
|                                             |                                                                    |           | <p>treatment order was made.</p> <p>Or:</p> <ul style="list-style-type: none"> <li>the inpatient treatment order was in respect of the person whilst they were on a community treatment order and</li> <li>the examination for making the order was conducted via AV and</li> <li>since then, the patient has not had a face-to-face examination and</li> <li>'Form 6D' – Confirmation of inpatient treatment order, was not made by a psychiatrist at the authorising hospital within 24 hours of the patient being admitted to the authorising hospital</li> </ul> |        |       |  |
| Release of a child after an Order to Attend | The person in charge of the place specified in the order to attend | <b>5F</b> | Releasing an involuntary community patient after they have been detained (for up to 6 hours) at a place specified in a Form 5F – Order to Attend                                                                                                                                                                                                                                                                                                                                                                                                                     | 130(5) | Carer |  |

| Description of event                                                                   | Responsibility                                      | Form       | Action Required                                                  | Section of MHA 2014 | Who to notify                       | Record of completion                   |
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| <b>Seclusion and restraint</b><br><a href="#">Navigate back to links</a>               |                                                     |            |                                                                  |                     |                                     |                                        |
| Record of oral authorisation of bodily restraint                                       | Medical Practitioner, MHP, Person in charge of ward | <b>10A</b> |                                                                  | 230                 | Child and carer<br>CP<br>MIARB      | Audit flowchart with monthly summaries |
| Written bodily restraint order                                                         | Medical Practitioner, MHP, Person in charge of ward | <b>10B</b> |                                                                  | 231                 | Child and carer<br>CP<br>MIARB      |                                        |
| Record of informing Medical Practitioner and treating Psychiatrist of bodily restraint | MHP, Person in charge of ward                       | <b>10C</b> |                                                                  | 230, 233            | 231, Child and carer<br>CP<br>MIARB |                                        |
| Record of observations made of restrained person                                       | Nurse, MHP                                          | <b>10D</b> |                                                                  | 238                 | Child and carer<br>CP<br>MIARB      |                                        |
| Record of examination of restrained person and possible extension of bodily            | Medical Practitioner                                | <b>10E</b> | Every 30 minutes, if longer than 6 hours, review by Psychiatrist | 234, 238            | Child and carer<br>CP               |                                        |



## Mental Health Act Legal Orders and Notifications

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|----------------------------------------------------|-----------------------------------------------------|------------|--------------------------------------------------------|----------|------------------------------------------------|--|
| restraint                                          |                                                     |            |                                                        |          | MIARB                                          |  |
| Variation of bodily restraint order                | Medical Practitioner, MHP                           | <b>10F</b> |                                                        | 234      | Child and carer<br>CP<br>MIARB                 |  |
| Revocation or expiry of bodily restraint order     | Medical Practitioner, MHP                           | <b>10G</b> |                                                        | 235, 237 | Child and carer (if revocation)<br>CP<br>MIARB |  |
| Review of bodily restraint order by a Psychiatrist | Psychiatrist                                        | <b>10H</b> | To be completed if restraint is more than 6 hours      | 238      | Child and carer<br>CP<br>MIARB                 |  |
| Record of post-bodily restraint examination        | Medical Practitioner                                | <b>10I</b> | Within 6 hours of release of restraint                 | 239      | Child and carer<br>CP<br>MIARB                 |  |
| Record of oral authorisation of seclusion          | Medical Practitioner, MHP, Person in charge of ward | <b>11A</b> | Written seclusion order to be completed within 2 hours | 214      | Child and carer<br>CP<br>MIARB                 |  |
| Written seclusion order                            | Medical Practitioner,                               | <b>11B</b> | To be completed within 2 hours of oral authorisation   | 215      | Child and carer                                |  |

## Mental Health Act Legal Orders and Notifications

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|                                                                                 | MHP, Person in charge of ward |            |                                                                  |               | CP<br>MIARB                    |  |
| Record of informing medical practitioner and treating Psychiatrist of seclusion | MHP, Person in charge of ward | <b>11C</b> | Completed within 2 hours of being secluded                       | 214, 215, 217 | Child and carer<br>CP<br>MIARB |  |
| Record of observations made of secluded person                                  | Nurse, MHP                    | <b>11D</b> | Completed every 15 minutes or more often if clinically indicated | 222           | Child and carer<br>CP<br>MIARB |  |
| Record of examination of secluded person and possible extension of seclusion    | Medical Practitioner          | <b>11E</b> | Complete every 2 hours                                           | 218, 222      | Child and carer<br>CP<br>MIARB |  |
| Revocation or expiry of seclusion order                                         | Medical Practitioner, MHP     | <b>11F</b> |                                                                  | 219, 221      | Child and carer<br>CP<br>MIARB |  |
| Record of post-seclusion examination                                            | Medical Practitioner          | <b>11G</b> | Within 6 hours of being released from seclusion                  | 223           | Child and carer<br>CP<br>MIARB |  |

| Description of event                                                | Responsibility                                | Form      | Action Required | Section of MHA 2014 | Who to notify          | Record of completion |
|---------------------------------------------------------------------|-----------------------------------------------|-----------|-----------------|---------------------|------------------------|----------------------|
| <b>Search and seizure</b><br><a href="#">Navigate back to links</a> |                                               |           |                 |                     |                        |                      |
| Record of search and seizure                                        | Transport Officer, Mental Health Staff member | <b>8A</b> |                 | 165, 166            | Carer, receiving place |                      |
| Record of dealing with seized article                               | Mental Health Staff member                    | <b>8B</b> |                 | 167                 |                        |                      |

| Description of event                                                        | Responsibility                                      | Form       | Action Required                                                                                                                  | Section of MHA 2014 | Who to notify                             | Record of completion |
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| <b>Granting of Leave</b><br><a href="#">Navigate back to links</a>          |                                                     |            |                                                                                                                                  |                     |                                           |                      |
| Grant of leave to involuntary Patient                                       | Psychiatrist                                        | <b>7A</b>  | <b>Notifiable Event</b><br>Granting an involuntary inpatient leave of absence from the hospital<br>See back of form for criteria | 105(1)<br>105(13)   | Carer                                     |                      |
| Extension and/or variation of grant of leave                                | Psychiatrist                                        | <b>7B</b>  | <b>Notifiable Event</b><br>Extending or varying an involuntary inpatient's leave<br>See back of form for criteria                | 106(1)<br>106(4)    | Carer                                     |                      |
| Cancelling of grant of leave                                                | Psychiatrist                                        | <b>7C</b>  | <b>Notifiable Event</b><br>Cancelling an involuntary inpatient's leave                                                           | 110(2)<br>110(5)    | Carer                                     |                      |
| Absence without Leave                                                       | The person in charge of the hospital or other place |            | <b>Notifiable Event</b><br>See also CAMHS Missing Mental Health Inpatient Procedure                                              | 97(3)               | Carer                                     |                      |
| Apprehension and return order / Revocation of apprehension and return order | Person in charge of hospital, Medical Practitioner  | <b>7D</b>  | <b>Notifiable Event</b><br>14 days from the order is made                                                                        | 98, 101             | Personal Support Person<br>Police Officer |                      |
| Notification to police                                                      | Person in charge                                    | <b>Nil</b> |                                                                                                                                  | 158                 | Police Officer                            |                      |

|                                                                                           |                                         |  |  |  |  |  |
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| when apprehended<br>person leaves (not<br>referred/ cannot<br>continue to be<br>detained) | of hospital,<br>Medical<br>Practitioner |  |  |  |  |  |
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| Description of event                                                             | Responsibility       | Form      | Action Required                                                                                                                                                                | Section of MHA 2014 | Who to notify                                     | Record of completion |
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| <b>Emergency Psychiatric Treatment</b><br><a href="#">Navigate back to links</a> |                      |           |                                                                                                                                                                                |                     |                                                   |                      |
| Record of Emergency Psychiatric Treatment                                        | Medical Practitioner | <b>9A</b> | A Medical Practitioner who provides emergency psychiatric treatment must document this in the medical record and provide a copy of this documentation to those identified here | 204                 | Carer<br>CP                                       |                      |
| Report to CP about provision of urgent non-psychiatric treatment                 | Practitioner         | <b>9B</b> | <b>Notifiable Event</b>                                                                                                                                                        | 242(5)              | Carer /<br>Personal support person<br>CP<br>MIARB |                      |

| Description of event                                                 | Responsibility         | Form                                                                                   | Action Required                                                                                                                                                                                                                                                                                                                                                                        | Section of MHA 2014 | Who to notify | Record of completion |
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| <b>Off-label treatment</b><br><a href="#">Navigate back to links</a> |                        |                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                        |                     |               |                      |
| Off label treatment provided to child who is involuntary patient     | Patient's Psychiatrist | <b>CP form</b><br><a href="#">MHA 2014 s304 Off Label prescription to a child form</a> | <p>The decision, reasons and product description must be recorded in the medical record if off-label therapeutic good are administered to a child who is an involuntary patient.</p> <p>'MHA2014 s.304 Off Label treatment provided to a child who is an involuntary patient – notification form' must be completed and provided to the Chief Psychiatrist as soon as practicable.</p> | 304                 | CP            | Consent form         |

| Description of event                                                          | Responsibility         | Form | Action Required                                                                                                                  | Section of MHA 2014 | Who to notify | Record of completion |
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| <b>Performance of Psychosurgery</b><br><a href="#">Navigate back to links</a> |                        |      |                                                                                                                                  |                     |               |                      |
| Report on performance of Psychosurgery (including approval from MHT)          | Patient's Psychiatrist | nil  | The Psychiatrist must report psychosurgery as soon as is practicable along with a copy of the Mental Health Tribunal's approval. | 209                 | CP & MIARB    |                      |

| Description of event                                 | Responsibility                            | Form       | Action Required             | Section of MHA 2014 | Who to notify | Record of completion |
|------------------------------------------------------|-------------------------------------------|------------|-----------------------------|---------------------|---------------|----------------------|
| <b>ECT</b><br><a href="#">Navigate back to links</a> |                                           |            |                             |                     |               |                      |
| Statistics about ECT                                 | Person in charge of mental health service | <b>13</b>  | After the end of each month | 201                 | CP            |                      |
| Report on ECT mentally impaired accused              | Patient's Psychiatrist                    | <b>nil</b> |                             | 200                 | MIARB         |                      |

| Description of event                                                                                                  | Responsibility             | Form           | Action Required                                                                                                                                                                                                                                             | Section of MHA 2014 | Who to notify                                                                                                          | Record of completion |
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| <b>Patient's wishes and rights</b><br><a href="#">Navigate back to links</a>                                          |                            |                |                                                                                                                                                                                                                                                             |                     |                                                                                                                        |                      |
| Patient's psychiatrist's regard to patient's wishes and any treatment decision different to Advanced Health Directive | Medical Practitioner, AMHP | <b>CP form</b> | If the decision made by the Medical Practitioner is inconsistent with a treatment decision in an Advance Health Directive, each of the following people are to be given the reasons<br><br><b>Timeframe: 48 Hours</b><br><b>Form/template to be drafted</b> | 179                 | Personal support person<br><br>Chief Psychiatrist<br><br>MHAS<br><br>Nominated Person, enduring guardian if applicable |                      |



| Description of event                                                                   | Responsibility                                                            | Form       | Action Required                                                                                                                                                                                                                                                 | Section of MHA 2014 | Who to notify                   | Record of completion |
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| <b>Communication and information sharing</b><br><a href="#">Navigate back to links</a> |                                                                           |            |                                                                                                                                                                                                                                                                 |                     |                                 |                      |
| Nomination of nominated person                                                         |                                                                           | <b>12A</b> |                                                                                                                                                                                                                                                                 | 275                 |                                 |                      |
| Record of refusal of patient's request to access document                              | Person who has authority to oversee refusal or requests to access records | <b>12B</b> |                                                                                                                                                                                                                                                                 | 248                 | Child and carer                 |                      |
| Restriction on freedom of communication                                                | Psychiatrist                                                              | <b>12C</b> | <b>Timeframe: within 24 hours</b>                                                                                                                                                                                                                               | 262                 | Child and carer<br>MHAS         |                      |
| Notification not in person's best interests                                            | Medical Practitioner, AMHP                                                | <b>Nil</b> | <p>The Medical Practitioner or Psychiatrist must, as soon as practicable, file a record of the decision and the reasons for it and give a copy to the Chief MH Advocate.</p> <p><b>Timeframe: within 24 hours</b></p> <p><b>Form/template to be drafted</b></p> | 142                 | Personal Support Person<br>MHAS |                      |
| Provision of information or involvement of nominated person                            | Medical Practitioner, AMHP                                                | <b>Nil</b> | <ul style="list-style-type: none"> <li>The Psychiatrist may decide not to provide information to the nominated person about a particular event if they believe it is not in the</li> </ul>                                                                      | 269                 | MH Advocate                     |                      |

|                                                                                                          |                                                   |     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |     |                 |  |
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| not in patient's best interest                                                                           |                                                   |     | <p>best interests of the patient.</p> <ul style="list-style-type: none"> <li>In which case the Psychiatrist must file a record of the decision and reasons for it and give a copy to the child/family and the Chief MH Advocate.</li> <li><b>Form/template to be drafted</b></li> </ul> <p><b>Timeframe: within 48 hours</b></p>                                                                                                                                                                                   |     |                 |  |
| Provision of information or involvement of carer or close family member not in patient's best interests. | Treating Psychiatrist                             | Nil | <ul style="list-style-type: none"> <li>The Psychiatrist may decide not to provide information to the carer, close family member or other personal support person about a particular event if they believe it is not in the best interests of the patient.</li> <li>In which case, the Psychiatrist must file a record of the decision and reasons for it and give a copy to the patient and the Chief MH Advocate.</li> <li><b>Form/template to be drafted</b></li> </ul> <p><b>Timeframe: within 48 hours</b></p> | 292 | MH Advocate     |  |
| Advise before making available document that the patient has been refused access to the document         | The person in charge of the mental health service | Nil |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 360 | Notify advocate |  |

| Description of event                                                    | Responsibility               | Form                                                                                                                                                                                   | Action Required                                                                                                                                                                                                  | Section of MHA 2014 | Who to notify                                  | Record of completion |
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| <b>Second/further opinion</b><br><a href="#">Navigate back to links</a> |                              |                                                                                                                                                                                        |                                                                                                                                                                                                                  |                     |                                                |                      |
| Refusal or confirmation to comply with request for further opinion      | Patient's Psychiatrist or CP | <b>CP Notification form – Refusal of further opinion request by psychiatrist available here:</b><br><br><a href="#">CP web site refusal-of-further-opinion-request-by-psychiatrist</a> | Psychiatrist to provide a copy to child and family and the Chief Psychiatrist, and if the additional opinion was requested by a person other than the child/family, that other person must also be given a copy. | 183                 | CP<br>Patient's Psychiatrist (if issued by CP) |                      |

| Description of event                                                                                                       | Responsibility                                    | Form              | Action Required                                                                                                                                                                                               | Section of MHA 2014 | Who to notify | Record of completion |
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| <b>Assault and/or aggression (patient to any other person)</b><br><a href="#">Navigate back to links</a>                   |                                                   |                   |                                                                                                                                                                                                               |                     |               |                      |
| Assault and/or aggression (patient to any other person); inpatient setting or on community mental health services premises | The person in charge of the mental health service | <b>Datix CIMS</b> | Report via <b>Datix CIMS</b> , tick 'yes' in response to the question 'Chief Psychiatrist: Is this a mental health notifiable incident?'<br><br><b>Timeframe: within 48 hours, or as soon as practicable.</b> | 525                 | CP            |                      |

| Description of event                                                                                        | Responsibility                                    | Form                                  | Action Required                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Section of MHA 2014 | Who to notify | Record of completion |
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| <b>Duty to report certain incidents to the Chief Psychiatrist</b><br><a href="#">Navigate back to links</a> |                                                   |                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                     |               |                      |
| Death of a patient – due to suspected suicide or overdose, or related to clinical care                      | The person in charge of the mental health service | <b>Datix CIMS</b>                     | <p>The death of active mental health patients due to suspected suicide or overdose, or that may be related to the clinical care (regardless of where the death occurs) must be reported to the CP via <b>Datix CIMS</b>. If further information becomes available after the CIMS report is completed, provide it via email to <a href="mailto:monitoring@ocp.wa.gov.au">monitoring@ocp.wa.gov.au</a>, quoting the CIMS reference number.</p> <p>Datix CIMS currently does not allow for the reporting of names of staff, patients, or others involved in, or witness to the incident (as required by s. 526). If applicable, these details must be reported by completing the OCP Notifiable Incidents Form and emailing it, with the CIMS reference number, to the CP at</p> <p><b>Timeframe: within 48 hours, or as soon as practicable.</b></p> | 525(a)<br>526       | CP            |                      |
| Other patient deaths                                                                                        | The person in charge of the mental health service | See The OCP Notifiable Incidents Form | <p>Other reportable patient deaths under the Act include:</p> <ul style="list-style-type: none"> <li>Active patient deaths, for reasons other than suicide or overdose, and that are</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 525(a)<br>526       | CP            |                      |

|                                                              |                                                        |                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                      |    |  |
|--------------------------------------------------------------|--------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|----|--|
|                                                              |                                                        | available on the <a href="#">Chief Psychiatrist website</a> . The password is unchanged.                                                 | <p>unrelated to clinical care;</p> <ul style="list-style-type: none"> <li>All deaths within 28 days of the patient's discharge/deactivation from any mental health service (community or inpatient), regardless of reason for death.</li> </ul> <p><b>Timeframe: within 48 hours, or as soon as practicable.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                      |    |  |
| Reasonable suspicion of reportable incidents, sexual contact | The staff of mental health service who holds suspicion | Report via <b>Datix CIMS</b> , tick 'yes' in response to the question 'Chief Psychiatrist: Is this a mental health notifiable incident?' | <p>Should a staff member have reason to believe a reportable incident has taken place (sexual contact between a patient and a staff member/another patient or unreasonable force on a patient by a staff member), they must report the suspicion to the Person in charge of the Mental Health Service and the Chief Psychiatrist (CP).</p> <p>Staff must consult the <a href="#">WA Health Clinical Incident Management (CIM) policy 2019</a> to determine whether the suspected incident is in scope of the CIMS policy. If covered by the CIMS policy, the incident must be reported to the CP via Datix CIMS.</p> <p>Datix CIMS currently does not allow for the reporting of names of staff, patients, or others involved in, or witness to the incident (as required by s. 526). These details must be reported by completing the OCP Notifiable Incidents Form and emailing it, with the CIMS reference number, to the CP.</p> <p><b>Timeframe: within 48 hours, or as</b></p> | 254<br>525(d)<br>526 | CP |  |

|                                                                  |                                                        |                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                      |    |  |
|------------------------------------------------------------------|--------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|----|--|
|                                                                  |                                                        |                                                                                                                                                                                                                                                                                     | <b>soon as practicable.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                      |    |  |
| Reasonable suspicion of reportable incidents, unreasonable force | The staff of mental health service who holds suspicion | <p>Report via <b>Datix CIMS</b>, tick 'yes' in response to the question 'Chief Psychiatrist: Is this a mental health notifiable incident?'</p> <p>See The OCP Notifiable Incidents Form available on the <a href="#">Chief Psychiatrist website</a>. The password is unchanged.</p> | <p>Should a staff member have reason to believe a reportable incident has taken place (unreasonable force on a patient by a staff member), they must report the suspicion to the Person in charge of the Mental Health Service and the Chief Psychiatrist (CP).</p> <p>Staff must consult the <a href="#">WA Health Clinical Incident Management (CIM) policy 2019</a> to determine whether the suspected incident is in scope of the CIMS policy. If covered by the CIMS policy, the incident must be reported to the CP via Datix CIMS.</p> <p>Datix CIMS currently does not allow for the reporting of names of staff, patients, or others involved in, or witness to the incident (as required by s. 526). These details must be reported by completing the OCP Notifiable Incidents Form and emailing it, with the CIMS reference number, to the CP.</p> <p><b>Timeframe: within 48 hours, or as soon as practicable.</b></p> | 254<br>525(d)<br>526 | CP |  |
| Occurrence of notifiable incident                                | The person in charge of the mental health service      | <p><b>Datix CIMS</b></p> <p>See The OCP Notifiable</p>                                                                                                                                                                                                                              | <p>Other notifiable incidents, including 'any other incident in connection with the provision of treatment or care to the person that has had, or is likely to have, an adverse effect on the person',</p> <p>Datix CIMS currently does not allow for</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 525(c),(d)<br>526    | CP |  |

## Mental Health Act Legal Orders and Notifications

|  |  |                                                                                                         |                                                                                                                                                                                                                                                                                                                                                      |  |  |  |
|--|--|---------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|--|
|  |  | Incidents Form available on the <a href="#">Chief Psychiatrist website</a> . The password is unchanged. | the reporting of names of staff, patients, or others involved in, or witness to the incident (as required by s. 526). If applicable, these details must be reported by completing the OCP Notifiable Incidents Form and emailing it, with the CIMS reference number, to the CP.<br><br><b>Timeframe: within 48 hours, or as soon as practicable.</b> |  |  |  |
|--|--|---------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|--|

| Description of event                                                                                                                                                   | Responsibility                                    | Form       | Action Required                                                                                                                                                                                               | Section of MHA 2014 | Who to notify | Record of completion |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|---------------|----------------------|
| <b>Request from child/family, Psychiatrist, or person with sufficient interest to be contacted by Mental Health Advocate</b><br><a href="#">Navigate back to links</a> |                                                   |            |                                                                                                                                                                                                               |                     |               |                      |
| Request for contact by mental health advocate                                                                                                                          | The person in charge of the mental health service | <b>Nil</b> | Patient, date of birth, ward, psychiatrist's name and legal status (i.e. involuntary treatment order, mentally impaired accused etc.) to be provided to the MHAS, by phone.<br><br><b>Timeframe: 24 Hours</b> | 356                 | MHAS          |                      |



| Description of event                                                                                             | Responsibility    | Form     | Action Required | Section of MHA 2014 | Who to notify           | Record of completion |
|------------------------------------------------------------------------------------------------------------------|-------------------|----------|-----------------|---------------------|-------------------------|----------------------|
| <b>Notifications by third parties</b><br><a href="#">Navigate back to links</a>                                  |                   |          |                 |                     |                         |                      |
| Issues arising out of inquiries and investigations by the MHAS                                                   | Chief MH Advocate | Nil      |                 | 363                 | CP                      |                      |
| Order/direction to revoke ITO or make/vary CTO                                                                   | MHT               | MHT form |                 | 395                 | Treating Psychiatrist   |                      |
| Recommendation about the amendments that could be made to the treatment, support and discharge plan of a patient | MHT               | MHT form |                 | 395                 | CP                      |                      |
| Notice of proceedings – application if a child is concerned (if a MH advocate is not also a party)               | MHT               | MHT form |                 | 446                 | MHAS<br>Child and carer |                      |
| Notice of hearing – if the person concerned in a proceeding is a child                                           | MHT               | MHT form | Within 48 hours | 447                 | MHAS<br>Child and carer |                      |

|                                        |  |  |  |  |  |  |
|----------------------------------------|--|--|--|--|--|--|
| (if a MH advocate is not also a party) |  |  |  |  |  |  |
|----------------------------------------|--|--|--|--|--|--|

| Description of event                                                                                                       | Responsibility                                    | Form                                                                                                                           | Action Required                                                                                                                                                   | Section of MHA 2014 | Who to notify  | Record of completion                                                   |
|----------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|----------------|------------------------------------------------------------------------|
| <b>Homicide</b><br><a href="#">Navigate back to links</a>                                                                  |                                                   |                                                                                                                                |                                                                                                                                                                   |                     |                |                                                                        |
| Homicide committed by a current mental health patient or a patient who was discharged within 28 days prior to the homicide | The person in charge of the mental health service | See The OCP Notifiable Incidents Form available on the <a href="#">Chief Psychiatrist website</a> . The password is unchanged. | Email notification to <a href="mailto:monitoring@ocp.wa.gov.au">monitoring@ocp.wa.gov.au</a><br><br><b>Timeframe: within 48 hours, or as soon as practicable.</b> | NA                  | CP and manager | Printed copy of email and OCP form to be filed in the medical record?? |

| Description of event                                                              | Responsibility                                    | Form | Action Required                                                                                                                                                                                                                                                                                                                                                           | Section of MHA 2014 | Who to notify  | Record of completion |
|-----------------------------------------------------------------------------------|---------------------------------------------------|------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|----------------|----------------------|
| <b>Media attention</b><br><a href="#">Navigate back to links</a>                  |                                                   |      |                                                                                                                                                                                                                                                                                                                                                                           |                     |                |                      |
| Any notifiable incident described in this policy that may receive media attention | The person in charge of the mental health service |      | <p>If the notifiable incident has been reported using Datix CIMS, send an email notification to <a href="mailto:monitoring@ocp.wa.gov.au">monitoring@ocp.wa.gov.au</a></p> <p>If already using the OCP 'Notifiable Incidents Form' tick the 'Is there likely to be any media attention' question</p> <p><b>Timeframe: within 48 hours, or as soon as practicable.</b></p> | NA                  | CP and manager |                      |

| Description of event                                                                                      | Responsibility                                    | Form | Action Required                                                                                                                                                                                                                                                                                               | Section of MHA 2014 | Who to notify  | Record of completion |
|-----------------------------------------------------------------------------------------------------------|---------------------------------------------------|------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|----------------|----------------------|
| <b>Urgent attention</b><br><a href="#">Navigate back to links</a>                                         |                                                   |      |                                                                                                                                                                                                                                                                                                               |                     |                |                      |
| Any notifiable incident described in this policy that requires urgent attention by the Chief Psychiatrist | The person in charge of the mental health service |      | In addition to the reporting of the notifiable incidents:<br><br>Send an email notification to the Chief Psychiatrist or the Office of the Chief Psychiatrist via <a href="mailto:monitoring@ocp.wa.gov.au">monitoring@ocp.wa.gov.au</a><br><br><b>Timeframe: within 48 hours, or as soon as practicable.</b> | NA                  | CP and manager |                      |

| Description of event                                               | Responsibility               | Form       | Action Required                                                                                                                                                                                       | Section of MHA 2014 | Who to notify      | Record of completion |
|--------------------------------------------------------------------|------------------------------|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|--------------------|----------------------|
| <b>Attempted suicide</b><br><a href="#">Navigate back to links</a> |                              |            |                                                                                                                                                                                                       |                     |                    |                      |
| Attempted suicide                                                  | Clinician reporting incident | Datix CIMS | Report via Datix CIMS, tick 'yes' in response to the question 'Chief Psychiatrist: Is this a mental health notifiable incident?'<br><br><b>Timeframe: within 48 hours, or as soon as practicable.</b> |                     | Chief Psychiatrist |                      |

| Description of event                                                              | Responsibility               | Form       | Action Required                                                                                                                                                                                       | Section of MHA 2014 | Who to notify      | Record of completion |
|-----------------------------------------------------------------------------------|------------------------------|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|--------------------|----------------------|
| Absent without leave and missing person<br><a href="#">Navigate back to links</a> |                              |            |                                                                                                                                                                                                       |                     |                    |                      |
| Absent without leave and missing person                                           | Clinician reporting incident | Datix CIMS | Report via Datix CIMS, tick 'yes' in response to the question 'Chief Psychiatrist: Is this a mental health notifiable incident?'<br><br><b>Timeframe: within 48 hours, or as soon as practicable.</b> |                     | Chief Psychiatrist |                      |

| Description of event                                                                                                                  | Responsibility                                    | Form | Action Required                                                                                                                                                                                       | Section of MHA 2014 | Who to notify      | Record of completion |
|---------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|--------------------|----------------------|
| Medication error<br><a href="#">Navigate back to links</a>                                                                            |                                                   |      |                                                                                                                                                                                                       |                     |                    |                      |
| Medication errors<br>Medication errors that has had, or is likely to have, an adverse effect on a patient must be reported to the CP. | The person in charge of the mental health service |      | Report via Datix CIMS, tick 'yes' in response to the question 'Chief Psychiatrist: Is this a mental health notifiable incident?'<br><br><b>Timeframe: within 48 hours, or as soon as practicable.</b> | 525(b)<br>526       | Chief Psychiatrist |                      |

## Appendix 2. Log Sheet – Fax notifications under the *MHA 2014*

[illegible]

**Appendix 3 Stamp/sticker**

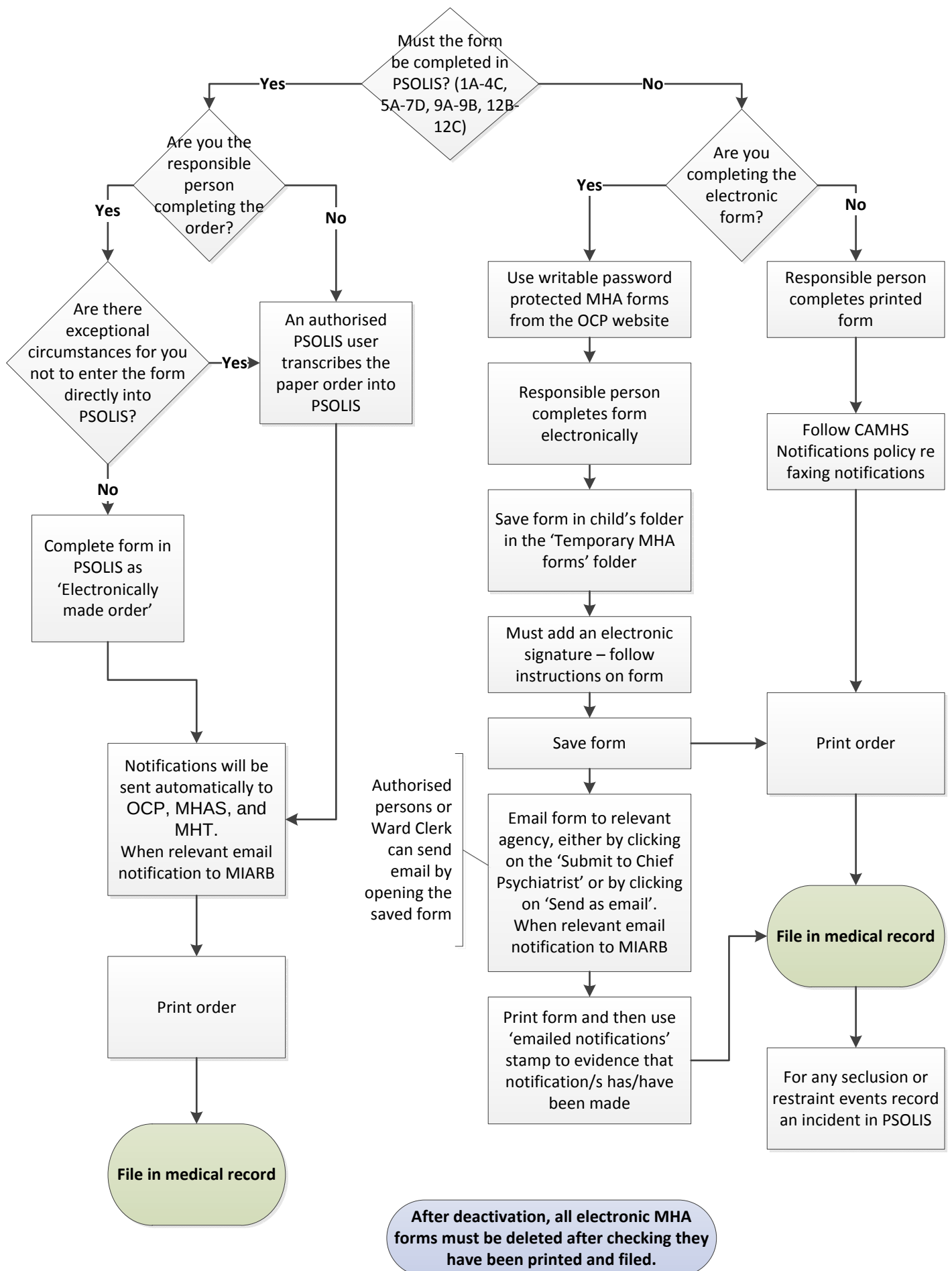
Stamp for use to record in child's medical record regarding forms sent to OCP, MHAS, MHT, MIARB

|                                   |                                 |
|-----------------------------------|---------------------------------|
| <u>NOTIFICATIONS</u>              |                                 |
| FAX SENT- DATE: _____             |                                 |
| TIME: _____                       |                                 |
| <input type="checkbox"/> -MHAS    | <input type="checkbox"/> -OCP   |
| <input type="checkbox"/> -MHT     | <input type="checkbox"/> -MIARB |
| <u>HE NUMBER</u> <u>SIGNATURE</u> |                                 |

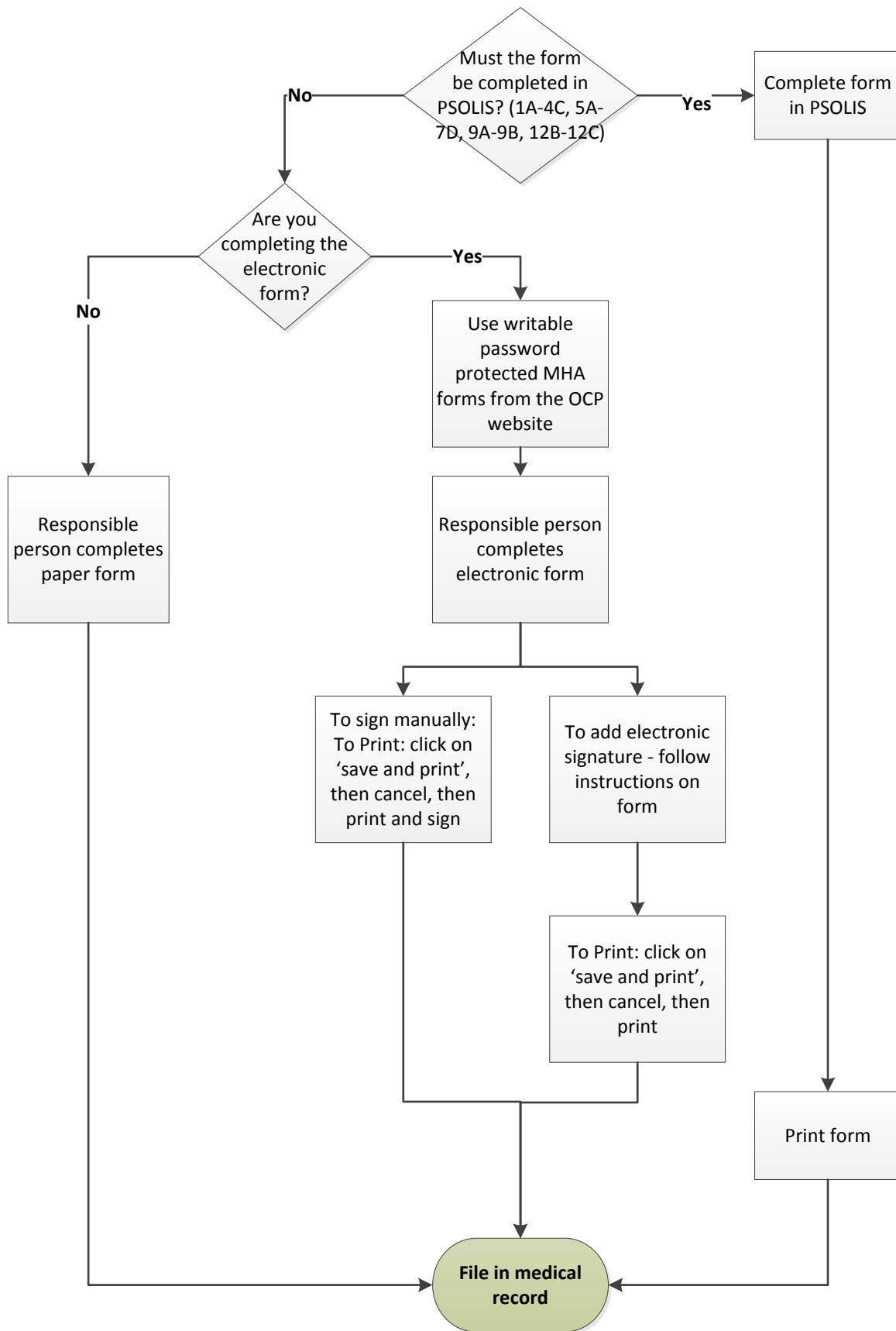
## Appendix 4 Flowcharts



## Completion, notification and filing of Notifiable MHA legal order forms



## Completion and filing of Non-notifiable MHA legal order forms



After deactivation, all electronic MHA forms must be deleted after checking they have been printed and filed in the medical record.